



SPONSOR: Sen. Seigfried & Rep. Burns
Reps. Chukwuocha, K. Johnson

DELAWARE STATE SENATE
153rd GENERAL ASSEMBLY

SENATE BILL NO. 191

AN ACT TO AMEND TITLE 16 OF THE DELAWARE CODE RELATING TO THE DELAWARE INSTITUTE FOR DENTAL EDUCATION AND RESEARCH.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE:

Section 1. Amend Chapter 99, Title 16 of the Delaware Code by making deletions as shown by strike through and insertions as shown by underline as follows and by redesignating accordingly:

§ 9940. Findings.

~~(b) The General Assembly finds and declares that the original DIDER statute anticipated multiple purposes for the organization, but that administrative and other resources have limited DIDER to 1 purpose—that of becoming a funding conduit for supporting hospital based residency training programs as required in Chapter 11, Title 24.~~

(b) The General Assembly finds and declares that the arrangement between the State and Temple University Kornberg School of Dentistry and hospital-based residency programs, as provided in Chapter 11 of Title 24, are extremely valuable to the State. The General Assembly further finds that continued support of DIDER to maintain these residencies should be perpetuated.

§ 9941. Creation of a Board.

(a) There is established the Board of Directors of the Delaware Institute for Dental Education and Research (“Board”) which shall serve as an advisory board to the Health Care Commission.

~~(b) The Board is comprised of the following members:~~

~~(1) Eight members, appointed by the Governor, as follows:~~

~~a. One member representing the public.~~

~~b. One member representing a federally qualified health center.~~

~~c. Three members from the Delaware State Dental Society, appointed in consultation with the Delaware State Dental Society, including 1 appointed in consultation with the Board of Directors of Christiana Care Health Services.~~

~~d. One member from the State Board of Dentistry and Dental Hygiene, appointed in consultation with the State Board of Dentistry and Dental Hygiene.~~

23 e. ~~One dental hygienist, appointed in consultation with the Delaware Dental Hygienist~~
24 ~~Association.~~

25 f. ~~One member from the Delaware Higher Education Office.~~

26 (2) ~~The Chair of the Delaware Health Care Commission, or the Chair's designee.~~

27 (3) ~~The Delaware State Dental Director, or the State Dental Director's designee, who serves as an ex~~
28 ~~officio member of the Board.~~

29 (b) The Board is comprised of 12 members, 9 voting members and 3 non-voting members.

30 (1) The 9 voting members are as follows:

31 a. Eight members, appointed by the Governor, as follows:

32 1. One member representing the public.

33 2. One member representing a federally-qualified health center.

34 3. Three members from the Delaware State Dental Society, appointed in consultation
35 with the Delaware State Dental Society.

36 4. One member from the State Board of Dentistry and Dental Hygiene, appointed in
37 consultation with the State Board of Dentistry and Dental Hygiene.

38 5. One dental hygienist, appointed in consultation with the Delaware Dental Hygienist
39 Association.

40 6. One member from the Christiana Care General Practice Residency Program.

41 b. The Chair of the Delaware Health Care Commission, or the Chair's designee, selected in
42 concert with DIDER, who serves as an ex officio member.

43 (2) The 3 non-voting members are as follows:

44 a. One ex officio member from Delaware State University, Wesley College of Health and
45 Behavioral Sciences

46 b. One ex officio member from the University of Delaware, Center for Health Profession
47 Studies.

48 c. The Delaware State Dental Director, or the State Dental Director's designee, who serves as an
49 ex officio member of the Board.

50 (c) ~~All members, other than the ex officio member, shall be appointed for a term of 3 years, except the initial~~
51 ~~appointments. Of the appointed positions, 3 will initially be for 1 year, 3 will initially be for 2 years, and 3 will be for 3~~

years, to allow for staggered terms. Members may be reappointed 3 times and may serve no longer than 9 years. Any member appointed to fill a vacancy shall be appointed only for the unexpired term.

(c) All members, other than ex officio members, shall be appointed for terms of 3 years. Any member appointed to fill a vacancy shall be appointed only to fill that vacancy for the remainder of the term but shall be eligible for re-appointment upon expiration of that term.

(d) The Chair shall be elected by the members from among the Board members.

(e) No member of the Board shall receive compensation for that member's duties other than normal travel expenses incurred in carrying out the responsibilities as members.

(f) A majority of the members of the Board shall constitute a quorum and shall be sufficient for any action by the Board. A majority of the voting members must be present at a Board meeting in order to have a quorum and conduct official business. A vacancy on the Board is not counted for quorum.

(g) The Board may establish working committees to assist in completing its work.

(g) The Chair of the Board shall be elected by the Board. Candidates for Chair of the Board shall be reviewed by a nominating committee. Membership of the nominating committee and rules for nominating candidates shall be determined by the Board. The Chair shall be subject to a 3-year term with no more than 3 consecutive terms. A Vice Chair shall be elected in the same manner and with the same term lengths and limits.

(h) Before becoming a Board member, that individual shall receive a training on the importance of diversity in healthcare and how diversity in the dental field reduces healthcare disparities, optimizes care delivery, and increases access to care.

(i) A consultant from Temple University Kornberg School of Dentistry's admission department or the University of Delaware's Center for Health Profession Studies Health Professions Evaluation Committee or a similar committee from Delaware State University may be invited to attend relevant meetings as deemed necessary the Chair. Any consultant attending meetings does not vote.

§ 9942. Purposes of the Board.

The purpose of the Board shall be to support, encourage encourage, and promote: promote all of the following:

(1) Accredited general practice residencies in dentistry at any general CoDA-accredited hospital in the State that will provide a comprehensive postgraduate training program pursuant to the requirements of Chapter 11 of Title 24.

(2) Expansion of opportunities for Delaware residents to obtain dental hygiene and dental assisting education and training at all levels.

(3) A strengthening of the factors favoring the decision of qualified dental personnel to practice in Delaware, including, but not limited to, tools such as loan repayment programs as approved by the Delaware Health Care ~~Commission~~. Commission and supporting programs such as general and specialty dental residences.

(4) Dental needs of the community at large and particularly those who do not have ready access to dental care.

(5) Expansion of opportunities for Delaware residents to obtain training at a reasonable cost in the dental professions.

(6) Incentives for qualified personnel in the dental professions to practice in Delaware.

(7) Support of ~~graduate and postgraduate training programs, including emphasis on those programs targeted to meet the State's health care needs.~~ general and specialty programs as recognized by the American Dental Association.

§ 9943. Duties.

The Board shall be responsible for implementation of policies designed to accomplish the purposes set forth in § 9942 of this title, and shall report to the Commission on its progress. Its activities and responsibilities shall include:

(1) Working in conjunction with the State Board of Dentistry and Dental Hygiene, development of programs to encourage and allow dentists to practice in under-served areas of the State, as ~~designated~~ recognized by the Delaware Health Care Commission, in lieu of hospital-based residency training as a condition of licensure. Such programs may include ~~preceptorships~~ and reciprocity.

(2) Loan repayment programs designed to attract dental personnel to Delaware's under-served areas, as approved by the Delaware Health Care Commission.

(3) Development of expanded opportunities for dental school graduates to obtain general practice training in Delaware. Examples of such opportunities may include, but not be limited to: satellite sites; partnerships with dental schools; and partnerships with local hospitals.

(4) Developing recruitment programs designed to attract dental personnel to Delaware.

(5) Developing plans for enhanced education opportunities for Delawareans interested in pursuing a dental ~~education~~. education such as the current relationship with Temple University, extending them to include other similar institutions based on need.

(6) Developing plans for improving access to dental care, particularly for the underserved populations.

The Board may develop working relationships and affiliation agreements with other institutions to facilitate

111 carrying out the purposes of this chapter. Any such agreements shall be approved by the Delaware Health Care
112 Commission, which shall be a signatory to any documents setting the terms of the agreement.

113 (7) Supporting programs to educate current dentists in the management of patients with disabilities. In
114 addition, consider supporting programs to educate dentists in the management of patients with cultural differences.

SYNOPSIS

This Act updates the language establishing the board of directors for the Delaware Institute for Dental Education and Research. This Act adjusts the composition of the voting and non-voting members of the board, the term limits of any board members, and procedures for how the Chair and Vice Chair are selected. The Act clarifies that any member of the board must complete a training on diversity. Any consultant from a university asked to assist the board with its official business does not vote. The Act makes minor changes pertaining to the purpose and duties of the board.

Author: Senator Seigfried